

STATE OF NEW YORK

6949--A

2025-2026 Regular Sessions

IN ASSEMBLY

March 18, 2025

Introduced by M. of A. KASSAY -- read once and referred to the Committee on Environmental Conservation -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the environmental conservation law and the state finance law, in relation to food service item waste reduction

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Article 27 of the environmental conservation law is amended by adding a new title 34 to read as follows:

TITLE 34

FOOD SERVICE ITEM WASTE REDUCTION

Section 27-3401. Definitions.

27-3403. Restriction on providing excess food service items.

27-3405. Violations.

27-3407. Preemption.

§ 27-3401. Definitions.

As used in this title, the following terms shall have the following meanings:

1. "Condiment" means an individual, single-use container, sealed by the manufacturer, containing a sauce or other substance used to enhance the flavor of food, including but not limited to, ketchup, mustard, mayonnaise, hot sauce, salt, or pepper.

2. "Customer" means an individual who receives or purchases food or beverages from a public food service establishment on a take-out, drive-thru, or delivery basis.

3. "Eating container" means a tool used for holding food or beverages, including but not limited to, a plate, bowl, cup, or lid.

4. "Napkin" means a piece of cloth or paper used to wipe a person's hands or face or protect garments while eating.

5. "Public food service establishment" means a premises or part of a premises where food is provided directly to a person, whether such food

EXPLANATION--Matter in italics (underscored) is new; matter in brackets [-] is old law to be omitted.

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1 is provided free of charge or sold, and whether consumption occurs on or
2 off the premises or is provided from a pushcart, stand or vehicle. Food
3 service establishment shall include, but not be limited to, full-service
4 restaurants, fast food restaurants, cafes, delicatessens, coffee shops,
5 bars, nightclubs, grocery stores, vending trucks or carts and cafeteri-
6 as.

7 6. "Third-party food delivery service" shall have the same meaning as
8 in section three hundred ninety-one-v of the general business law.

9 7. "Utensil" means a tool used for eating or drinking, including, but
10 not limited to, a knife, fork, spoon, drinking straw, beverage stirrer
11 or chopsticks.

12 § 27-3403. Restriction on providing excess food service items.

13 1. No public food service establishment operating in the state shall
14 provide utensils, condiments, napkins or extra eating containers to a
15 customer, whether directly to such customer or through a third-party
16 food delivery service, except upon, and in accordance with, the express
17 request of such customer. The provisions of this subdivision shall apply
18 regardless of whether the customer's meal order is placed in person,
19 over the phone, online, or using other available means or methods.

20 2. Any public food service establishment that elects to supply custom-
21 ers with utensils, condiments, napkins or extra eating containers upon
22 request, as authorized by subdivision one of this section, shall provide
23 each customer with only those types and amounts of utensils, condiments,
24 napkins or extra eating containers that have been expressly requested
25 thereby.

26 3. Nothing in this section shall be deemed to require a public food
27 service establishment to provide any utensils, condiments, napkins or
28 extra eating containers to customers, upon their request, as authorized
29 by subdivision one of this section.

30 4. A public food service establishment maintaining a self-service
31 station at which utensils, condiments, napkins or extra eating contain-
32 ers are offered shall not be a violation of subdivision one of this
33 section.

34 § 27-3405. Violations.

35 1. Any public food service establishment that violates any provision
36 of this title shall receive a warning notice for the first such
37 violation and a civil penalty of up to one hundred dollars for any
38 subsequent violation in the same calendar year. For purposes of this
39 section, each commercial transaction shall constitute no more than one
40 violation. A hearing or opportunity to be heard shall be provided prior
41 to the assessment of any civil penalty.

42 2. The department, the department of agriculture and markets, and the
43 attorney general are hereby authorized to enforce the provisions of this
44 title, and all monies collected shall be deposited to the credit of the
45 environmental protection fund established pursuant to section ninety-
46 two-s of the state finance law.

47 § 27-3407. Preemption.

48 This title shall not apply in a city with a population of one million
49 or more that has a local law, ordinance or regulation in place that
50 restricts the provision of utensils, condiments, napkins and extra
51 eating containers by a public food service establishment to a customer
52 and is not in conflict with this title.

53 § 2. Subdivision 3 of section 92-s of the state finance law, as
54 amended by section 3 of part YY of chapter 58 of the laws of 2025, is
55 amended to read as follows:

1 3. Such fund shall consist of the amount of revenue collected within
2 the state from the amount of revenue, interest and penalties deposited
3 pursuant to section fourteen hundred twenty-one of the tax law, the
4 amount of fees and penalties received from easements or leases pursuant
5 to subdivision fourteen of section seventy-five of the public lands law
6 and the money received as annual service charges pursuant to section
7 four hundred four-n of the vehicle and traffic law, all moneys required
8 to be deposited therein from the contingency reserve fund pursuant to
9 section two hundred ninety-four of chapter fifty-seven of the laws of
10 nineteen hundred ninety-three, all moneys required to be deposited
11 pursuant to section thirteen of chapter six hundred ten of the laws of
12 nineteen hundred ninety-three, repayments of loans made pursuant to
13 section 54-0511 of the environmental conservation law, all moneys to be
14 deposited from the Northville settlement pursuant to section one hundred
15 twenty-four of chapter three hundred nine of the laws of nineteen
16 hundred ninety-six, provided however, that such moneys shall only be
17 used for the cost of the purchase of private lands in the core area of
18 the central Suffolk pine barrens pursuant to a consent order with the
19 Northville industries signed on October thirteenth, nineteen hundred
20 ninety-four and the related resource restoration and replacement plan,
21 the amount of penalties required to be deposited therein by section
22 71-2724 of the environmental conservation law, all moneys required to be
23 deposited pursuant to article thirty-three of the environmental conser-
24 vation law, all fees collected pursuant to subdivision eight of section
25 70-0117 of the environmental conservation law, all moneys collected
26 pursuant to title thirty-three of article fifteen of the environmental
27 conservation law, beginning with the fiscal year commencing on April
28 first, two thousand thirteen, nineteen million dollars, and all fiscal
29 years thereafter, twenty-three million dollars plus all funds received
30 by the state each fiscal year in excess of the greater of the amount
31 received from April first, two thousand twelve through March thirty-
32 first, two thousand thirteen or one hundred twenty-two million two
33 hundred thousand dollars, from the payments collected pursuant to subdi-
34 vision four of section 27-1012 of the environmental conservation law and
35 all funds collected pursuant to section 27-1015 of the environmental
36 conservation law, all moneys required to be deposited pursuant to
37 sections 27-2805 and 27-2807 of the environmental conservation law, all
38 moneys collected pursuant to section 71-2730 of the environmental
39 conservation law, all moneys required to be deposited pursuant to
40 section seven hundred sixty-five of the general business law, all moneys
41 required to be deposited pursuant to section 27-3205 of the environ-
42 mental conservation law, all moneys required to be deposited pursuant to
43 section 27-3405 of the environmental conservation law, and all other
44 moneys credited or transferred thereto from any other fund or source
45 pursuant to law. All such revenue shall be initially deposited into the
46 environmental protection fund, for application as provided in subdivi-
47 sion five of this section.

48 § 3. This act shall take effect one year after it shall have become a
49 law. Effective immediately, the addition, amendment and/or repeal of any
50 rule or regulation necessary for the implementation of this act on its
51 effective date are authorized to be made and completed on or before such
52 effective date.